

Thompson, one of three co-executors, had called in a sum of money secured by a mortgage for a term of years, and received the amount, and *afterwards*, but the same day, sent round his clerk to his co-executors with a particular request that they would execute the assignment and sign the receipt, which they accordingly did. Thompson afterwards became bankrupt, and the money * was lost, and [*269] thereupon a bill was filed to charge the co-executors.

Lord Northington said, "The rule that executors joining in a receipt are all liable amounts to no more than this, that a joint receipt given by executors is a *stronger* proof that they *actually* joined in a receipt, because generally they have no occasion to join for conformity. But, if it appears plainly that one executor only received, and discharged the estate indebted, and assigned the security, and the others joined afterwards without any reason, and without being in a capacity to control the act of their co-executor either before or after the act was done, what grounds has any Court in conscience to charge him? The only act that affected the assets was the first that discharged the debt, and, according to the sense of the Bar, transferred the legal estate of the lands. Then *that* the co-executors are not to answer for, and the second is nugatory." His Lordship was therefore of opinion that the co-executors were not liable for the misapplication by the co-executor.

Executors joining pro formâ not answerable where the joining was a nugatory act. — The doctrine propounded in this case, that the joint receipt of co-executors is merely a stronger proof of the actual receipt than in the instance of co-trustees, and that an executor as well as a trustee may rebut the presumption by positive evidence, has since been repeatedly controverted (*a*). The simple point determined, viz. that an executor who signs shall not be answerable when the act of signature is nugatory, may be considered as now settled.

(a) *Sadler v. Hobbs*, 2 B. C. C. & Lef. 341; *Chambers v. Minchin*, 7 Ves. 198; *Brice v. Stokes*, 11 Ves. 90; *Langford v. Gascoyne*, 11 Ves. 325; *Shipbrook v. Hinchinbrook*, 16 Ves. 479; *Walker v. Symonds*, 3 Sw. & Lef. 243; *Joy v. Campbell*, 1 Sch. 64; *Re Fryer*, 3 Jur. N. S. 485.